

**ORDER SHEET**  
**IN THE LAHORE HIGH COURT**  
**MULTAN BENCH, MULTAN**  
**JUDICIAL DEPARTMENT**

**C.R.No.586-D/2018**

Muhammad Siddique, etc.    versus    Asghar Ali Naseem

| <i>Sr. No. of order/<br/>Proceedings</i> | <i>Date of order/<br/>Proceeding</i> | <i>Order with signature of Judge, and that of<br/>Parties' counsel, where necessary</i> |
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**12.04.2018**      Mr. Zulfiqar Ali Bhatti, Advocate for petitioners.

Through this revision petition, petitioners have called in question judgment and decree dated 23.02.2018 passed by Additional District Judge, Dunyapur, District Lodhran and judgment and decree dated 18.02.2017 passed by Civil Judge 1<sup>st</sup> Class, Dunyapur whereby the suit for possession filed by respondent was concurrently decreed against the petitioners.

2.     The brief facts of the case are that respondent/plaintiff is owner of suit property measuring 4-kanals 10-marlas, subject matter of this petition which was allotted to him through cooperative farming scheme on 09.03.1980 and subsequently title was transferred to him through conveyance deed dated 10.01.2003. In the year 1992, suit property was borrowed by predecessor-in-interest of petitioners who allegedly raised construction over the same for temporarily residence with promise to return possession of suit property to respondent on his demand but when respondent raised demand after conveyance deed was sanctioned in his favour, petitioners declined to hand over possession of suit property to him and filed application for cancellation of said deed before revenue authorities which application was dismissed up till Member Board of Revenue. The respondent/plaintiff filed the suit for possession and also claimed mesne profits for

the period from 2003 to 2013, which was decreed vide judgment and decree dated 18.02.2017 by Civil Judge, Dunyapur, appeal preferred there-against was dismissed vide judgment and decree dated 23.02.2018 by Additional District Judge, Dunyapur with slight modification that amount of mesne profit of Rs.100,000/- allowed by trial court was reduced to Rs.50,000/-. Both afore-referred judgments and decrees are under challenge through the titled revision petition.

3. The learned counsel for petitioners has argued that the suit filed by respondent was barred by limitation as the respondent claimed that suit land was allotted to him in the year 1980 whereas suit for possession was filed by him on 21.2.2013 which was beyond the period of limitation and the same was liable to be dismissed. Further, it was claimed that the respondent got allotted the land through fraud and proceedings are pending in the Board of Revenue for cancellation of allotment in his favour. In case the said allotment is cancelled, the petitioner being occupant of the afore-referred property for a long period would be entitled to its allotment, hence the suit filed by respondent be dismissed.

4. **Heard**, record perused.

5. The respondent claimed the suit property, the subject matter of this petition, measuring 4-kanals 10-marlas was allotted to him in cooperative farming scheme on 09.03.1980 and its conveyance deed was sanctioned in his favour on 10.01.2003. The respondent also claimed that predecessor-in-interest of petitioners borrowed the property of respondent in the year 1992 with the promise to return the same when demanded but when the

respondent made demand for return of possession, the predecessor-in-interest of the petitioners refused to return the same. Instead he challenged the conveyance deed in favour of respondent before revenue authorities and it was claimed by respondent that the said application has been dismissed up to the Board of Revenue. The respondent also raised claim for mesne profit from 2003 to 2013 i.e. from the conveyance deed in his favour till the filing of the suit. The present petitioners contested the claim of the respondent and both the parties led their respective evidence.

6. The first ground raised by the petitioners is that the suit filed by respondent was barred by limitation, as allotment was made in favour of the respondent in the year 1980 and suit was filed on 02.12.2013 whereas the petitioners were in possession since 1992. The respondent's claim is based on the conveyance deed sanctioned in his favour on 10.01.2003 whereby the title was transferred to him and he became the owner of the suit property and thereafter within 12-years the respondent filed the suit for recovery of possession against the petitioners. The claim of respondent is that previously the petitioners had borrowed the property and were enjoying its possession with the permission of the respondent. The limitation was to start from the acquisition of title by the respondent i.e. 10.01.2003 or refusal or denial by petitioners to return possession to respondent. The limitation for filing suit for possession is 12-years and the claim of the respondent was based on title conveyed to him in the year 2003, in the plaint it is claimed that the petitioners refused to hand over the possession a week prior to filing the suit. The petitioners have not produced

anything on the record to show that they had raised any claim adverse to the respondent and also denied his title more than 12-years ago or that claim of respondent was false, therefore, the suit filed on 02.12.2013 was well within time, hence, the objection of the petitioners relating to suit barred by limitation is misconceived and resultantly the said claim is declined and decided against the petitioners and in favour of respondent.

7. The next claim of petitioners is that they are entitled to allotment of afore-referred land in case Board of Revenue cancels the conveyance deed and allotment in favour of the respondent. Be that as it may, this Court cannot set aside the concurrent findings of fact recorded by courts below whereby the petitioners have been treated as illegal occupants of the suit land merely on the remote chance of the petitioners to be allotted the afore-referred land in case the allotment and conveyance deed in favour of respondent is cancelled by the Board of Revenue. Besides, the respondent is still the owner of the suit land as per conveyance deed in his favour and the suit for possession has been filed on the basis of title, therefore, no illegality or infirmity has been pointed out in the judgments and decrees passed by both the courts below whereby the suit could be dismissed.

8. As regards the payment of mesne profit is concerned, the learned trial court decreed the suit for an amount of Rs.100,000/- in favour of respondent and against the petitioners which amount has been reduced by the appellate court to Rs.50,000/-. The afore-referred findings of fact are based on factual determination of the amount that the court deems the respondent to be entitled to for the use of property by the petitioners. The

respondent was entitled to receive mesne profit for the use and occupation of his property. No ground to differ with the findings of appellate court is made out and no illegality or jurisdictional defect has been pointed out whereby the concurrent findings of fact could be interfered by this Court in its revisional jurisdiction.

9. In view of above, this petition being devoid of merit is **dismissed**.

(MUZAMIL AKHTAR SHABIR)  
JUDGE

\*KMSubhani\*